PAARLWEB INVESTMENTS PVT LTD

Versus

HWANGE LOCAL BOARD

IN THE HIGH COURT OF ZIMBABWE
MOYO J
BULAWAYO 10 NOVEMBER 2025 AND 1 MARCH 2026

Civil trial

T. Mutsambiwa, for the plaintiff
J. Tsvangirai, for the defendant

MOYO J: Plaintiff's claim is for:-

"(a) A declaration be and is hereby issued that the Agreement of Sale between plaintiff and defendant wherein defendant sold stand 7011 industrial site, Hwange for $24 045-00 and negotiated balance within 5 years be declared binding and enforceable.

(b) Defendant be and is hereby ordered and directed to do all that is required by its by-laws relating to development of leased property to facilitate a development of Stand 7011 Industrial site, Hwange within 21 days of issue of this order.

(c) Costs of suit."

Plaintiff's Case

Bruno Fungai Takawira gave evidence for the plaintiff. He told the court that defendant sold them (the plaintiff company) a stand in Hwange. That they advertised Stand 7011 and his company responded to the advert in 2022. He tendered a copy of the advert. They offered to buy the stand and they were given a pro forma invoice for 24 000 that included VAT. They were then given a letter to say defendant was processing the title deeds. Defendant said plaintiff had paid everything. While waiting for title deeds, they were told that the value of the stand had changed to 1, 497 million USD. He said that council (Defendant) then started dilly dallying with the title deeds. He said in the meantime they levelled the ground, removed some trees, constructed a kitchen and ablution facilities together with a small block of offices.

Under cross-examination the following emerged:-

1. That on the 29th of August when plaintiff received a confirmation of payment from the defendant, in fact they had not paid anything since they only paid on 22 September.

The witness accepted under cross-examination that they did not accept defendant's offer as it was. He confirmed that they understood the letter and that they did not accept it as it was. He said in plaintiff's mind the stand was 20 000 as that is what intrisic value meant. It was put to him that defendant wanted a deposit of 20 000 plus projects funded over 5 years and he said no. He accepted under cross-examination that on 29 August they were offered to purchase land by defendant. It was further put to him that the invoice from defendant is dated 15 September so they could not have paid for the land in full on 29 August 2022 so clearly that letter was just meant to aid them to obtain an Environmental Management Agency permit not to confirm any contract between the parties. He responded by saying they were creating confusion with these letters.

It was further put to him that his company resolution to purchase the land was passed on 31 August 2022 so they could not have entered into a contract and paid for the land on 22 August 2022. He respondent by saying if defendant had told them that the land is 1.5 million the parties would not be in court. Plaintiff's witness further said in response to the attack on his claim of buying land on 22 August yet the resolution to buy same was passed on 31 August, he said the court should not be misled by technicalities.

He was further taken to page 44 of the record where there is an email by plaintiff showing further engagement between the parties. Plaintiff's witness accepted that but said they did not engage on the price of 1.5 million. It was put to him that so he had no issues with further payments, he first had issues with the amount of 1.5 million and he responded by saying if defendant had told them about the 1.5 million they would not be in court.

He was further asked under cross-examination

Q. "So what meetings were you holding on further payment when you knew you had paid everything"

He responded by saying:-

A. "I have no comment"

He was taken to his synopsis of evidence and it was put to him that it shows that he knew about the corporate social responsibility at 2 000 USD per year and he said yes.

Asked if there were discussions about the projects at 2 000 USD per year, he replied by saying he could not remember. Questioned where the 2 000 USD came from he said if they had been told about the 1.5 million. Asked if 24 000 USD was the correct value of the land he said yes. He was referred to his own evaluation report which valued the land at 60 000 USD. He said yes but it is still not 1.5 million. It was put to him that the structures erected on the land were illegal structures as they were never approved by council.

It was put to him that from the facts of the case as alleged by him there is no contract between the parties and that in fact he is seeking the court to make a contract for the parties by coming up with a negotiated balance. The plaintiff then closed its casse.

Mabureni Paulos gave evidence for the defendant. He told the court that plaintiff made an application for an industrial stand in 2022. He said plaintiff asked to be allocated land and an offer was made to them through the letter dated 29/08/22. He summarised the offer as an initial payment of $20 000 USD and balance to be paid through funding and that the projects would be agreed between plaintiff and defendant to benefit the community. He said the confirmation letter sent on 22 August 2022 was meant only to aid plaintiff to process its papers with the Environmental Management Agency.

Under cross-examination it was put to defendant's witness that the issue of the value of the projects was vague.

Clearly from the evidence of plaintiff's witness, the contract was not concluded, one party thought the land was for 20 000,00 the other party thought the land should be 1.5 million yet what comes out clearly is that even plaintiff was aware of the project component of the contract, which the parties did not fully quantify and which led to the defendant coming up with a value of 1.5 million.

Again, it is clear that the letter of 29 August 2022 could not have been confirming payment by plaintiff for the land yet, plaintiff had not been invoiced, had not even paid and had not even resolved to purchase the stand. So the only logical conclusion is that defendant is correct on the circumstances and the purpose of the letter dated 29 August 2022, that it was to pave the way for an Environmental Management Agency permit and nothing else. I am not persuaded that plaintiff has made a case for the existence of a valid contract between it and the defendant as even the relief sought shows that plaintiff wants the court to mend and finalise the contract for it. That is not possible. If anything these parties were never *ad idem*. Whilst it is

clear that they both knew about the pending projects as part of the fulfilment of the contract to purchase land by plaintiff, plaintiff does not accept the value placed by defendant, and obviously without an agreed figure, there is no valid contract because the parties did not agree on all the pertinent issues of the matter, that is all the terms and conditions of the contract.

For that reason, plaintiff's claims are dismissed with costs.

Task Vhiki Attorneys, plaintiff's legal practitioners
Dube-Tachiona and Tsvangirai, defendant's legal practitioners